

5.

CASE #	CASE NAME	HEARING NAME
CVRI2601657	BRIGGS vs ZAKHIREH, M.D.	MOTION TO BE RELIEVED AS COUNSEL FOR CATHY BRIGGS

Tentative Ruling:

The motion to be relieved as counsel is granted. Counsel Pamela S. Traut is relieved as counsel of record for Plaintiff effective upon the filing of the proof of service of the signed order being served upon the client.

6.

CASE #	CASE NAME	HEARING NAME
CVRI2500492	KRAIN vs MOREHEAD	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

Plaintiff asks the Court to take judicial notice of the docket and various filings in this action. It is unnecessary to take judicial notice of documents already filed in the same action. (Cf. *Davis v. Southern California Edison Company* (2011) 236 Cal.App.4th 619, 632, fn. 11.) Thus, the request is denied.

Evidentiary Objections

Plaintiff objects to ¶¶ 2-10 of the Decl. of Raquel Hernandez [“Hernandez Decl.”], and Exs. A-D attached thereto on the grounds that they lack foundation and personal knowledge, are speculative, and are hearsay. In the Hernandez Decl., she states that in the course of her employment with American Express, she “has access to and is familiar with the manner in which American Express creates, maintains, and stores account records for its cardmembers;” the records are kept in the ordinary course of business and were created at or near the time of the event they describe; the records are created by and/or based upon information from a person with knowledge of the matters set forth in the records. (Hernandez Decl. ¶ 2.) She then states that, as reflected in American Express’ records: Plaintiff has maintained a Gold Card since January 29, 2004; at Plaintiff’s request, his account was transferred to a Premier Rewards Gold Card in August 2010, and a Cardmember Agreement for that card containing an arbitration provision was mailed to Plaintiff on August 5, 2010; a revised Cardmember Agreement for that card, also containing an arbitration provision, was mailed to Plaintiff on January 19, 2011; and Plaintiff continued to use his card after receiving the Cardmember Agreements. (Hernandez Decl. at ¶¶ 2-9.)

In support of his objections, Plaintiff relies entirely upon the cases of *Fleming v. Oliphant Financial, LLC* (2023) 88 Cal.App.5th 13 and *Chambers v. Crown Asset Management, LLC* (2021) 71 Cal.App.5th 583. Plaintiff’s reliance on these cases is misplaced.